

STATE OF NEW YORK

9334--A

IN SENATE

March 3, 2026

Introduced by Sens. BOTTCER, BAILEY, BASKIN, BRISPORT, FERNANDEZ, GIANARIS, GONZALEZ, GOUNARDES, MYRIE, RIVERA, SALAZAR, SEPULVEDA, SERRANO, WEBB, ZELLNER -- read twice and ordered printed, and when printed to be committed to the Committee on Codes -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the penal law, in relation to consumer warnings regarding rifles, shotguns, and firearms

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 400.00 of the penal law is amended by adding a new
2 subdivision 21 to read as follows:

3 21. (a) Upon the issuance of or amendment to a license or permit for
4 possession of a firearm, rifle or shotgun, the licensing officer shall
5 provide the licensee or permittee, as applicable, a graphic warning or
6 warnings designed pursuant to paragraph (c) of this subdivision together
7 with the notice required pursuant to subdivision twenty of this section.

8 (b) Where a firearms dealer displays or otherwise provides the notice
9 required pursuant to subdivision twenty of this section, adjacent to
10 such notice shall be a graphic warning sign designed pursuant to para-
11 graph (c) of this subdivision. Such graphic warning sign shall be unob-
12 structed in its entirety.

13 (c) The department of health and department of mental hygiene shall:

14 (i) design one or more graphic warnings that depict the nature of the
15 health and safety risks described in the notice required pursuant to
16 subdivision twenty of this section; and

17 (ii) publish and make available on its website the graphic warnings
18 designed pursuant to subparagraph (i) of this paragraph.

19 (d) No licensing officer, local government, or any employee thereof
20 shall be liable to any person by reason of any injury or damage result-
21 ing from the failure of any gunsmith or firearms dealer to comply with
22 this subdivision or in consequence of any act or omission in connection
23 with the implementation or enforcement of this subdivision.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (e) Any person, firm or corporation required to display or otherwise
2 provide the graphic warning sign pursuant to paragraph (b) of this
3 subdivision who fails to display such sign shall be guilty of a
4 violation punishable by imprisonment of not more than fifteen days or by
5 a fine of not more than one thousand dollars, or both. Each day that a
6 violation continues shall be deemed a separate offense.

7 (f) The provisions of this subdivision shall not supersede any local
8 law or ordinance that imposes stricter disclosure or notice requirements
9 and the notices required by this subdivision shall be in addition to any
10 other notices required by any other federal, state or local law, ordi-
11 nance, rule or regulation.

12 (g) The department of health and department of mental hygiene may
13 enact any rules that are necessary to implement paragraph (c) of this
14 subdivision.

15 § 2. This act shall take effect on the two hundred tenth day after it
16 shall have become a law.